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Judge: Horan, Cecilia A.

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Mariyana T. Spyropoulos
CIRCUIT CLERK
COOK COUNTY, IL
20262005977

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IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
MUNICIPAL DEPARTMENT, SECOND MUNICIPAL DISTRICT

JASON SHERRICK,
Plaintiff,

v.

NORMANDY HOUSE, INC., an Illinois not-for-profit corporation; BROWN STR. SIX FLAT LLC, an Illinois limited liability company; KENNETH IVASKA; and CHARLES FROST,

Defendants.

20262005977

Case No. _____

Amount claimed: $7,973.32, plus costs

Premises:
1471 Brown St, Apt 3
Des Plaines, IL 60016

VERIFIED COMPLAINT FOR DECLARATORY JUDGMENT, INJUNCTIVE RELIEF, AND DAMAGES

Plaintiff JASON SHERRICK, self-represented, complains of Defendants NORMANDY HOUSE, INC., BROWN STR. SIX FLAT LLC, KENNETH IVASKA, and CHARLES FROST as follows:

NATURE OF THE ACTION

1. Plaintiff pays Defendants weekly rent to live in Apartment 3 of a four-unit apartment building in Des Plaines. Defendants call the rent a "donation," call Plaintiff a "guest," and required him to sign a form stating that he has no renters' rights and must leave the same day if asked. Three days after Plaintiff reported fire and building code violations to the City of Des Plaines, Defendants' house manager entered his apartment without notice, produced that form, and threatened to remove him that day. Plaintiff seeks a declaration that he is a tenant who may be removed only by court order, an injunction, and the damages provided by the Cook County Residential Tenant and

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Landlord Ordinance, Cook County Code § 42-801 et seq. (the "Ordinance"), and the Landlord Retaliation Act, 765 ILCS 721/1 et seq.

PARTIES, JURISDICTION, AND VENUE

2. Plaintiff resides at 1471 Brown St, Apt 3, Des Plaines, Illinois 60016 (the "Premises").

3. Defendant Brown Str. Six Flat LLC is an Illinois limited liability company. Cook County Assessor records list it as the taxpayer of record for 1471 Brown St and classify the property as Class 211, "Apartment Building With Between 2 and 6 Units," with four units. (Exhibit A.) On information and belief, it owns the building.

4. Defendant Normandy House, Inc. ("Normandy") is an Illinois not-for-profit corporation that operates the Premises as a "sober living" residence and collects rent from its residents.

5. Defendant Kenneth Ivaska is the President, a director, and the registered agent of Normandy, and the manager and registered agent of Brown Str. Six Flat LLC, according to their most recent annual reports to the Illinois Secretary of State. He thus controls both the company that collects the rent and the company that, on information and belief, owns the building. On information and belief, he directs the management of the Premises and approved the Agreement described below.

6. Defendant Charles "CJ" Frost is the house manager at the Premises and is listed as Normandy's Secretary on its 2025 federal Form 990. At all relevant times he acted at the direction of the other Defendants.

7. Each Defendant is a "landlord" of the Premises, meaning an owner or agent of the owner, under Section 42-803(A)(3) of the Ordinance, or a person acting at the direction of the landlord.

8. Venue is proper in Cook County under 735 ILCS 5/2-101, and in the Second Municipal District, because the Premises are in Des Plaines and the events giving rise

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to this action occurred there.

FACTS

A. The Tenancy and the "Guest" Agreement

9. Plaintiff moved into the Premises in August 2026 and has lived there continuously since. He pays Normandy $230 every week, by money order payable to Normandy, in exchange for housing.

10. As a condition of moving in, Plaintiff signed a two-page form titled "Guest Copy of Expectation and Rules" (the "Agreement"). Exhibit B is a copy of the form as provided to Plaintiff.

11. The Agreement states that "Donations are due on Sunday" and that there are "No Exceptions or you will be asked to leave." It requires residents to "[m]aintain gainful employment, attend outpatient program, be in school or looking for a job." Plaintiff is employed.

12. Ivaska carries the same label into Normandy's tax reporting. On April 28, 2026, he signed Normandy's 2025 federal Form 990 as President, under penalty of perjury. The return reports all $551,024 of Normandy's 2025 revenue as contributions, and reports no program service revenue and no rents.

13. The Agreement requires each resident to sign the following statements:

> "I understand that I am a guest at Normandy House Sober Living and do not have renters' rights."
>
> "I understand that I am a guest at Normandy House Sober Living. If you are asked to leave you will leave that same day."
>
> "I also release Normandy house of any responsibility for all medical, legal, emotional problems and expenses that might be incurred during my stay at Normandy House Sober Living."

It also provides that a violation "may include a demand that the guest vacate the house immediately."

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14. The Agreement sets no end date for a resident's stay and contemplates long-term residence: it requires one meeting a day "for ninety (90) days" and provides that "[a]fter 90 days 4 meetings per week is expected." Plaintiff's rent of $230 per week is about $1,000 per month.

15. On information and belief, Normandy holds no license from the Illinois Department of Human Services to operate a recovery home or to provide substance use treatment, receives no government funding, and provides no clinical services at the Premises. The Premises are not a medical or treatment facility or a shelter.

B. Plaintiff's Complaints to the City

16. On the night of October 26, 2026, Plaintiff submitted written requests to the City of Des Plaines reporting, among other things, missing smoke detectors (Request No. 4015), ungrounded electrical receptacles and unpermitted construction (No. 4016), the "guest" Agreement and the practice of labeling rent as "donations" (No. 4017), and overcrowding (No. 4020). (Group Exhibit C.)

17. On October 27, 2026, the City responded that "Fire Prevention will reach out to the property owner" and assigned the other requests to its Community and Economic Development department for inspector follow-up. (Id.) On information and belief, City inspection activity took place at the building on October 28, 2026.

C. The Entry and Threatened Removal of October 29, 2026

18. On the morning of October 29, 2026, as Plaintiff was leaving for work, Defendant Frost entered Plaintiff's apartment. Defendants had given Plaintiff no notice of the entry, and there was no emergency.

19. Frost demanded that Plaintiff stop leaving for work and provide a urine sample on the spot. Plaintiff explained that he had to go to work and offered to take a breathalyzer test immediately. Frost refused, produced the Agreement, and threatened to remove Plaintiff from the house that day for "non-compliance."

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20. The same day, Plaintiff reported the threat to the City and to the Des Plaines Police Department (Report No. DP-26-00037520), and delivered to Defendants Ivaska and Frost a written cease and desist notice stating that he is a tenant and that any lockout without a court order is unlawful. (Exhibit D.)

21. On information and belief, Defendants knew or believed that Plaintiff had made the complaints to the City. The threat came three days after the complaints, the morning after the inspection activity, and was made by producing the same Agreement that Plaintiff had submitted to the City.

22. Defendants have not served Plaintiff with any written notice of termination, filed any eviction action, or obtained any court order against him. Plaintiff remains in possession of the Premises. Defendants have not withdrawn their threat.

23. Defendants' conduct has caused Plaintiff fear of losing his home without warning and emotional distress.

COUNT I – DECLARATORY JUDGMENT (735 ILCS 5/2-701)

24. Plaintiff restates paragraphs 1 through 23.

25. An actual controversy exists. Defendants contend, through the Agreement and Frost's threat, that Plaintiff is a "guest" without renters' rights whom they may remove the same day on demand. Plaintiff contends that he is a tenant who may be removed only through the eviction process.

26. Plaintiff is a "tenant" of a "dwelling unit" under Section 42-803(A)(1) and (12) of the Ordinance. His weekly payments are "rent," which the Ordinance defines as "all payments to be made to the landlord under the rental agreement," whatever the landlord calls them (§ 42-803(A)(9)). The Agreement is a "rental agreement" (§ 42-803(A)(10)). Because Plaintiff pays weekly, his tenancy is week to week (§ 42-804(D)).

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27. No exclusion applies. The Premises are an apartment in a four-unit apartment building, not a medical facility, shelter, or other residence excluded by Section 42-802(A)(2), and not a hotel or rooming house under Section 42-802(A)(8). A landlord "shall not create a rental agreement in the form of an excluded agreement to avoid the application of" the Ordinance (§ 42-802(D)). Illinois law describes sober living homes that are not licensed by the Department of Human Services as "independent living residences that only provide peer support and a lengthened exposure to the culture of recovery" (20 ILCS 301/55-40(a)). A residence that charges about $1,000 a month, sets no end date, and requires its residents to work is housing, not a medical facility or shelter. On information and belief, the City of Des Plaines has not adopted its own landlord-tenant ordinance of the kind that would displace the Ordinance under Section 42-801(D).

28. Under the Ordinance, a landlord who claims that a tenant has broken a rule must give written notice of at least ten days and an opportunity to cure, and may then file an eviction action (§ 42-809(B)(1)). A landlord may not oust a tenant, or threaten to, without authority of law (§ 42-813(A)). A rental agreement cannot waive these rights (§ 42-804(F)(1), (3)).

29. A declaration of Plaintiff's status will terminate the controversy.

COUNT II – PROHIBITED RENTAL AGREEMENT PROVISIONS (COOK COUNTY CODE § 42-804(F), (G))

30. Plaintiff restates paragraphs 1 through 23.

31. A rental agreement shall not provide that the tenant "[a]grees to waive or to forego rights or remedies under this Article, Illinois state law, or federal law" (§ 42-804(F)(1)); agrees to a waiver of "any written termination of tenancy notice" or of court process (§ 42-804(F)(3)); or "[a]grees to the limitation of any liability of the tenant or landlord arising under law" (§ 42-804(F)(5)).

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32. The Agreement contains each of these prohibited provisions: the statement that Plaintiff does "not have renters' rights" (§ 42-804(F)(1)); the requirements to "leave that same day" and "vacate the house immediately" (§ 42-804(F)(1), (3)); and the release of Normandy from "any responsibility for all medical, legal, emotional problems and expenses" (§ 42-804(F)(5)).

33. "A landlord shall not enforce a provision prohibited by" Section 42-804 (§ 42-804(G)). On October 29, 2026, Frost enforced the prohibited provisions by producing the Agreement and threatening Plaintiff with same-day removal.

34. On information and belief, Defendants deliberately use the Agreement, knowing that its provisions are prohibited. They require every resident to sign it, and they label rent as "donations" and tenants as "guests" in order to avoid landlord-tenant law. Ivaska, who controls both Normandy and Brown Str. Six Flat LLC, personally reported the rent to the IRS as contributions (paragraph 12).

35. The Agreement began in August 2026, after the June 1, 2021 effective date of Section 42-804(F) (§ 42-804(H)). Under Section 42-804(G), Plaintiff may recover his actual damages or two months' rent, whichever is greater. Two months' rent is $1,993.33 ($230 per week × 52 weeks ÷ 12 months × 2).

COUNT III – RETALIATION (COOK COUNTY CODE § 42-812; 765 ILCS 721/5)

36. Plaintiff restates paragraphs 1 through 23.

37. Plaintiff complained in good faith of code violations to the City of Des Plaines, the governmental agency responsible for enforcing the building and fire codes at the Premises (§ 42-812(A)(1); 765 ILCS 721/5(1)).

38. Three days later, Defendants attempted to terminate Plaintiff's tenancy and threatened to dispossess him that day. Both laws prohibit a landlord from terminating a tenancy, or threatening to bring an action for possession, because of such a complaint

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(§ 42-812(A); 765 ILCS 721/5). A threat to remove a tenant with no court action at all is a more serious violation, not a lesser one.

39. Because Plaintiff complained within one year before the retaliatory conduct, the Court shall presume that the conduct was retaliatory (§ 42-812(C); 765 ILCS 721/20). Whatever reason Defendants may offer, no rule violation would permit removing a tenant the same day without notice or a court order.

40. Plaintiff is entitled to recover up to two months' rent or twice his damages, whichever is greater, and reasonable attorney's fees (§ 42-812(B)(3); 765 ILCS 721/10(3)), and to injunctive relief against further retaliation (765 ILCS 721/10).

COUNT IV – THREATENED LOCKOUT (COOK COUNTY CODE § 42-813)

41. Plaintiff restates paragraphs 1 through 23.

42. A landlord, or any person acting at its direction, "shall not oust or dispossess, or threaten or attempt to oust or dispossess, any tenant from a dwelling unit without authority of law," including by blocking any entrance or "by any act rendering a dwelling unit ... inaccessible" (§ 42-813(A)).

43. Frost threatened to remove Plaintiff from the Premises that day without notice or a court order. Defendants could carry out that threat only by barring Plaintiff's entry or otherwise making the dwelling unit inaccessible to him. None of the exceptions in Section 42-813(A)(1) through (4) applies.

44. The lockout prohibition applies even to units that are otherwise excluded as rooming houses (§ 42-802(C)).

45. Under Section 42-813(B), Plaintiff is entitled to recover up to two months' rent or twice his actual damages, whichever is greater, and reasonable attorney's fees.

COUNT V – UNLAWFUL ENTRY (COOK COUNTY CODE §§ 42-805(E)(3), 42-808(B)(2))

46. Plaintiff restates paragraphs 1 through 23.

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47. Except in an emergency, a landlord must give the tenant at least two days' written notice before entering the dwelling unit, and "shall not abuse the right of access or use it to harass the tenant" (§ 42-808(B)(2)(b), (c)).

48. On October 29, 2026, Frost entered Plaintiff's apartment without any notice and with no emergency, and used the entry to demand an on-the-spot urine sample and to threaten Plaintiff with removal.

49. Under Section 42-805(E)(3), Plaintiff may obtain injunctive relief to prevent a recurrence and recover up to two months' rent or twice his damages, whichever is greater, and reasonable attorney's fees.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff JASON SHERRICK asks this Court to:

A. Declare that Plaintiff is a tenant of the Premises under a week-to-week tenancy governed by the Ordinance and Illinois law; that Defendants may end it only by proper written notice and may remove Plaintiff only by court order enforced by the Sheriff of Cook County; and that the "guest," "renters' rights," "leave that same day," "vacate the house immediately," and release provisions of the Agreement are void and unenforceable;

B. Enter preliminary and permanent injunctions prohibiting Defendants, and anyone acting at their direction, from (1) locking Plaintiff out of the Premises, changing locks or door codes without giving him working access, blocking his entry, interrupting services, or removing his property; (2) enforcing the prohibited provisions of the Agreement; (3) entering his apartment without two days' written notice except in an emergency; and (4) retaliating against Plaintiff for his complaints to government agencies or for this action;

C. Award Plaintiff $1,993.33, or twice his actual damages if greater, on each of Counts II through V, for a total of $7,973.32;

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D. Award Plaintiff his costs, and reasonable attorney's fees if he retains counsel; and

E. Grant any other relief the Court finds just.

Respectfully submitted,

/s/ Jason Sherrick

Jason Sherrick, Plaintiff, pro se
Date: October 29, 2026

Jason Sherrick
Self-Represented Plaintiff (Cook County Atty. No. 99500)
1471 Brown St, Apt 3
Des Plaines, IL 60016
(708) 483-9000
jasonsherrick@gmail.com

VERIFICATION BY CERTIFICATION

Under penalties as provided by law pursuant to Section 1-109 of the Code of Civil Procedure, the undersigned certifies that the statements set forth in this instrument are true and correct, except as to matters therein stated to be on information and belief and as to such matters the undersigned certifies as aforesaid that he verily believes the same to be true.

/s/ Jason Sherrick

Jason Sherrick
Date: October 29, 2026

AFFIDAVIT REGARDING DAMAGES SOUGHT (ILL. S. CT. R. 222(b))

Under penalties as provided by law pursuant to Section 1-109 of the Code of Civil Procedure, the undersigned certifies that the total of money damages sought in this action does not exceed $50,000.

/s/ Jason Sherrick

Jason Sherrick
Date: October 29, 2026

EXHIBITS

Exhibit A – Cook County Assessor record, 1471 Brown St, Des Plaines
Exhibit B – "Guest Copy of Expectation and Rules"

Group Exhibit C – City of Des Plaines Requests No. 4015, 4016, 4017, and 4020
Exhibit D – Cease and Desist Notice dated October 29, 2026

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